

Contentious Chamber

Decision on the merits 29/2024 of February 9, 2024

File number: DOS-2020-01312

Subject: Exercise of the right to erasure concerning the publication of a name, address, and photo on a website

The Contentious Chamber of the Data Protection Authority, composed of MR. HIELKE Hijmans, president, and Misters Dirk Van Der Kelen and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, [address], hereinafter "the complainant";

The defendant:

Mr. Y, [address], [national register number], represented by
Me Christian Lemache, hereinafter "the defendant".

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I. Facts and procedure

1.

On March 10, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. The subject of the complaint concerns the online publication of the complainant's name, address, and photo on the defendant's website. The defendant obtained the personal data in question from the complainant during an on-site visit to the complainant's home following an energy renovation subsidized by the Province. The defendant, in his capacity as a politician, published the complainant's data on his personal website. The complainant has contacted the defendant several times requesting the deletion of the personal data concerning him. Although the defendant states that he will comply with the complainant's request, the situation remains unchanged, and the complainant's data can still be accessed online on the defendant's website.

3. On March 12, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4. On February 15, 2021, the Contentious Chamber informed the parties of Decision 16/2021 of February 9, 2021, in which the Contentious Chamber ordered the defendant, under Article 58.2, c) of the GDPR and Article 95, § 1, 5° of the LCA, to comply with the request of the data subject to exercise his rights, specifically the right to erasure (Article 17.1 of the GDPR), and to delete the complainant's personal data within 14 days from the notification of the aforementioned Decision 16/2021.

5. In the absence of any action taken by the defendant following Decision 16/2021, the Contentious Chamber decided, on March 10, 2021, based on Article 95, § 1, 1° and Article 98 of the LCA, that the case could be examined on the merits and informed the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions was set for April 21, 2021, the deadline for the complainant's reply conclusions for May 12, 2021, and the deadline for the defendant's

reply conclusions for June 2, 2021.

6. On May 5, 2021, the complainant indicated that he had not received any conclusions from the defendant and that, in the absence of such, he had no opportunity to respond, but that his data was still available online on the defendant's website.

7. On May 6, 2021, the Contentious Chamber sent a request to the defendant to ascertain whether he wished to submit conclusions and that an additional deadline of one

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a week is granted if applicable. On the same day, the defendant only responds by indicating that he wishes to communicate via another email address without indicating in any way whether he will submit conclusions.

8.

In the absence of any response from the defendant, the Contentious Chamber establishes a new schedule for the conclusions on May 12, 2021, which is sent to the defendant at the address he requested to use. The deadline for receiving the defendant's response conclusions has been set for June 23, 2021, the deadline for the complainant's reply conclusions for July 14, 2021, and the deadline for the defendant's reply conclusions for August 4, 2021.

9.

After another absence of response from the defendant raising doubts about his intention to present defenses, the Contentious Chamber proceeds ex officio, on November 22, 2023, to set a hearing date for December 12, 2023. This invitation to the hearing is sent both by email and by registered mail.

10.

On November 27, 2023, the complainant informs the Contentious Chamber that he will not participate in the hearing, stating that he believes his presence at the hearing is unnecessary given that the facts are clear.

11.

On December 6, 2023, the Contentious Chamber is informed that the defendant has appointed a lawyer. The lawyer, who claims to have been contacted recently by the defendant, requests a postponement of the hearing from the Contentious Chamber, stating that it is materially impossible to prepare for the hearing in such a short time. He also requests a copy of the file on this occasion. The lawyer also indicates that he advised the defendant to remove the complainant's data from the website. The lawyer expressly asks the complainant to state whether, in these circumstances, he maintains his case.

12.

On December 8, 2023, the request for postponement of the hearing is accepted by the Contentious Chamber, which informs the parties.

13.

On December 14, 2023, the Contentious Chamber informs the parties of the new hearing date, which is set for January 23, 2024, and a copy of the file is transmitted to the defendant (Article 95, § 2, 3° of the LCA).

14.

On January 12, 2024, the complainant informs the Contentious Chamber that his data has been removed from the defendant's website and that, as far as he is concerned, the case should no longer be processed. He states that he is satisfied with the outcome of the case.

15.

On January 12, 2024, the defendant's lawyer also responds, stating that following the complainant's message, the subject of the dispute is no longer relevant, so that a substantive treatment with appearance at the hearing no longer makes sense.

16.

On January 22, 2024, the Contentious Chamber clarifies to the parties that the hearing scheduled for January 23, 2024, is maintained. The Contentious Chamber explains in this regard that once seized, it is authorized to examine compliance with the GDPR independently and to ensure its effective application, even though the complaint has been withdrawn by the complainant or has become moot.

17. The oversight exercised by the Contentious Chamber is not primarily aimed at resolving disputes

but constitutes one of the instruments available to the DPA to ensure compliance with data protection rules, in accordance with the provisions of European treaties, the GDPR, and the law of December 3, 2017, establishing the Data Protection Authority. If a complaint is filed and then referred for examination to the Contentious Chamber as an admissible complaint, the Contentious Chamber must assess whether the reported facts constitute a violation of one of the legal provisions that the DPA must monitor for compliance. This oversight also extends to the assessment of violations that have ceased at the time of examination by the Contentious Chamber.

18. The hearing takes place on January 23, 2024. The parties, duly summoned, do not appear. Although the hearing of the Contentious Chamber was set to still provide the defendant with the opportunity to assert his defense rights, the Contentious Chamber can only note that the absence of the defendant means that he has chosen not to avail himself of this opportunity.

19. On January 25, 2024, the minutes of the hearing are transmitted to the parties.

20. On January 25, 2024, the Contentious Chamber also informs the defendant of its intention to impose an administrative fine as well as the amount of it, in order to give the defendant the opportunity to defend himself before the sanction is actually imposed. The defendant has the opportunity to respond no later than February 7, 2024.

21. On February 8, 2024, the Contentious Chamber notes the absence of a response from the defendant regarding the intention to impose an administrative fine, as well as regarding the amount of it.

II. Reasoning

22.

It emerges from all the facts that have occurred in this case that the defendant has had several opportunities to act in accordance with the GDPR, which, following a request made under Article 17.1 of the GDPR, obliges him to comply with the obligations incumbent upon him under Articles 12.3 and 12.4 of the GDPR. Initially, the defendant received several requests from the complainant to proceed with the deletion, but despite his promise to the complainant to remove his data from the website, the situation remained unchanged. Even when the Contentious Chamber subsequently ordered him to do so through Decision 16/2021 of February 9, 2021, no action was taken. The defendant therefore also did not seize this opportunity to give effect to the corrective measure of the Contentious Chamber and to proceed with the deletion of the data.

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23. After the corrective measure imposed in Decision 16/2021 of February 9, 2021, was clearly ignored by the defendant and despite the order to proceed with the deletion, he nonetheless persisted in maintaining the publication of the complainant's data (despite being fully aware of the injunction as evidenced by the file¹ and having never denied receiving the decision notifying him of it), the Contentious Chamber now decides to impose an administrative fine that is not intended to terminate a violation committed, but rather to rigorously enforce the rules of the GDPR.

24. As clearly stated in recital 148 of the GDPR, the GDPR indeed emphasizes that for any serious violation – thus also upon the first finding of a violation – sanctions, including administrative fines, should be imposed in addition to or instead of appropriate measures². In the recent ruling *Deutsche Wohnen*³, the Court of Justice of the European Union clarified that an administrative fine could be imposed if it is established that the data controller has committed, intentionally or negligently, a violation referred to in Article 83, paragraphs 4 to 6 inclusive of the GDPR.

25.

The Contentious Chamber demonstrates below that the violations of Articles 12.3 and 12.4 of the GDPR in conjunction with Article 17.1 of the GDPR as well as Article 31 of the GDPR committed by the defendant are in no way minor violations and that the fine does not constitute a disproportionate burden for an individual, as referred to in recital 148 of the GDPR, two cases in which one may refrain from imposing a fine. The fact that this is the first finding of a violation of the GDPR committed by the defendant does not in any way affect the Contentious Chamber's ability to impose an administrative fine. The Contentious Chamber imposes the administrative fine pursuant to Article 58.2.i) of the GDPR. The instrument of the administrative fine is therefore not intended to terminate the violations. To this end, the GDPR and the LCA provide for several corrective measures, including the injunctions

cited in Article 100, § 1, 8° and 9° of the LCA.

26.

Taking into account Article 83 of the GDPR and the case law⁴ of the Market Court, the Contentious Chamber substantiates the imposition of an administrative sanction concretely:

1 To which the defendant only responded: "My email address is: [email address]"

2 Recital 148 states the following: "In order to strengthen the enforcement of the rules of this Regulation, sanctions including administrative fines should be imposed for any violation of this Regulation, in addition to or instead of appropriate measures imposed by the supervisory authority under this Regulation. In the case of a minor violation or if the fine that may be imposed constitutes a disproportionate burden for an individual, a warning may be issued instead of a fine. However, due regard should be given to the nature, gravity, and duration of the violation, the intentionality of the violation and the measures taken to mitigate the damage suffered, the degree of responsibility or any relevant previous violations, how the supervisory authority became aware of the violation, compliance with measures ordered against the data controller or the processor, the application of a code of conduct, and any other aggravating or mitigating circumstances. The application of sanctions including administrative fines should be subject to appropriate procedural safeguards in accordance with the general principles of Union law and the Charter, including the right to effective judicial protection and to a fair procedure." [own emphasis]

3 Judgment of December 5, 2023, C-807/21, ECLI:EU:C:2023:950.

4 Brussels Court of Appeal (Market Court section), X v. APD, Judgment 2020/1471 of February 19, 2020.

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27.

First, the nature and severity of the violation are taken into consideration by the Contentious Chamber to justify the imposition of this sanction and its extent.

28.

In this regard, the Contentious Chamber notes that the provisions violated pertain to the very essence of the GDPR, namely the rights of data subjects under Articles 12 to 22 inclusive of the GDPR. Both the complainant's request and Decision 16/2021 of February 9, 2021, from the Contentious Chamber aimed to enforce the complainant's right to erasure by the defendant. The complainant's request for erasure was made several times to the defendant, and each time, despite the promise made to the complainant to delete the data, the defendant did not carry out this deletion.

29.

Decision 16/2021 of February 9, 2021, in which the Contentious Chamber ordered the defendant to proceed with the erasure, also went unheeded. Despite the binding nature of this decision, the defendant did not respond appropriately, despite the repeated requests from the complainant and the injunction from the Contentious Chamber. The defendant only proceeded with the erasure after the Contentious Chamber scheduled a hearing ex officio in accordance with Article 52 of the Rules of Procedure. The violations of the aforementioned articles give rise to the highest fines under Article 83, paragraph 5 of the GDPR. The rights of the data subject, including the right to erasure as provided in Article 17.1 of the GDPR, and the obligations arising for the data controller as established in Articles 12.3 and 12.4 of the GDPR, are essential elements of the GDPR, such that their disregard by the defendant must be considered serious. The same applies to the failure to comply with the obligation of cooperation as stated in Article 31 of the GDPR, given that the defendant simply ignored Decision 16/2021 ordering the execution by the complainant of the requested erasure, a decision that was therefore made in application of the fundamental rights of the data subject, specifically Article 17.1 of the GDPR, and that despite this decision from the Contentious Chamber, the publication of the complainant's data on the website was maintained.

30. The duration of the violation is also taken into consideration. The Contentious Chamber notes that the complainant submitted their first request for the deletion of their personal data on the defendant's website on November 18, 2018. This request, however, went unanswered, so the complainant reiterated their request on August 13, 2019, and again on February 18, 2020.

31.

Given that the defendant also did not respond to these requests, the complainant filed a complaint with the Data Protection Authority, which, in its Decision 16/2021 of February 9, 2021, ordered the defendant to delete the personal data in question. Once again, no action was taken. The defendant also did not respond to the successive invitations from the Contentious Chamber allowing the parties, and thus also the defendant, to submit defenses. It was only when the Contentious Chamber proceeded to schedule a hearing ex officio that...

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Under Article 108, § 1 of the LCA, this decision may be appealed to the Market Court (Court of Appeal of Brussels) within thirty days from its notification, with the Data Protection Authority as the defendant. Such an appeal may be introduced by means of a contradictory application which must include the mentions listed in Article 1034ter of the Judicial Code. The contradictory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

5 "The application contains under penalty of nullity:

1° the indication of day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their status and national register number or business number;

3° the name, first name, domicile and, where applicable, the status of the person to be summoned;

4° the subject and a brief statement of the grounds for the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer."

6 "The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry."